

Smt Ashraf Jahan v. U.P. Power Corporation Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 February 2024 · 2024:AHC:21533-DB · Writ-C No. 3068 of 2024 · **Writ disposed; representation with pre-deposit to be decided on merits**

HEADNOTE

A writ for correction of an electricity bill, filed without the pre-deposit required by the U.P. Electricity Supply Code, 2005 and without a proper representation, is disposed of. If a proper representation with the prescribed deposit is filed within two weeks, the authority must decide it on merits by a reasoned order, preferably within one month of compliance. The deposit differs with the kind of representation.

FACTUAL SUMMARY

Smt Ashraf Jahan filed Writ-C No. 3068 of 2024 in the Allahabad High Court against U.P. Power Corporation Nigam Ltd. and two others, seeking correction of her electricity bill. Counsel for the petitioner and for the corporation were heard. She had not deposited any amount and had not filed a proper application. The U.P. Electricity Supply Code, 2005 provides a statutory representation for that grievance, and the deposit required before the representation differs according to its type.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::pre-deposit

bill-correction representation

HOLDING

A consumer seeking correction of an electricity bill must file the proper statutory representation under the U.P. Electricity Supply Code, 2005 and make the pre-deposit applicable to that kind of representation. Where no pre-deposit has been made and no proper application filed, the writ is disposed of so that the representation, if filed with the pre-deposit within two weeks, may be decided on merits by a reasoned speaking order, preferably within one month of compliance. ¶ 2-3

FLAG Order invokes the Supply Code pre-deposit for a bill representation but states no clause number

PRINCIPLE TAGS

predeposit-before-bill-representation The writ for bill correction was disposed of because the petitioner had made no pre-deposit and filed no proper representation under the Supply Code; a representation filed with the applicable deposit is to be decided on merits. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL IS LIABLE TO BE CORRECTED

Left to a reasoned order on a proper representation accompanied by the applicable pre-deposit ¶ 3